TCD 001/2023 Bond Interior Design LLC v Eleveight Restaurant & Entertainment Center LLC

SEPTEMBER 01, 2023 TECHNOLOGY AND CONSTRUCTION DIVISION - ORDERS

Claim No: TCD 001/2023

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

BOND INTERIOR DESIGN LLC

Claimant

and

ELEVEIGHT RESTAURANT & ENTERTAINMENT CENTER LLC

Defendant

CASE MANAGEMENT ORDER OF H.E. JUSTICE MAHA AL MHEIRI

UPON reviewing the Court file

AND UPON reading the Case Management Bundle

AND UPON reviewing the Rules of the DIFC Courts (the "RDC")

AND UPON hearing Counsel for the Claimant and Counsel for the Defendant at the Case Management Conference held before me on 17 August 2023

AND UPON the Claimant and the Defendant having agreed to the terms of this Order

IT IS HEREBY ORDERED THAT:

Agreed List of Issues

1. Adjacent to each paragraph of each witness statement, reply witness statement (if any) and skeleton argument shall be inserted the issue or issues to which that paragraph relates as numbered in the Agreed List of Issues, in order for the Court to understand to which of the agreed issues that paragraph relates.

List of Issues for the Claimant's Claim[1]

2. What is the proper construction of the Contracts?

3. Whose responsibility was it to provide authority approvals?

4. Who delayed in providing instructions, drawings, authority approvals, site clearances or appointing specialised suppliers or contractors?

5. Did the Claimant comply with the notice requirements contained in the Contracts?

6. Did the Claimant comply with the requirements and specifications of the Project outlined in the Contracts?

7. What variations were approved and granted pursuant to the terms of those Contracts?

8. Whether the Defendants complied with the requirements to notify any objections to notices issued by the Claimant.

9. Whether the Defendant complied with the obligation to make payments to the Claimants under the Contracts.

10. Whether the Defendant unreasonably refused to issue a Taking Over Certificate to the Claimant in relation to the works completed.

11. If the Defendant is found to have breached the Contracts, is the Claimant entitled to damages or compensation?

12. If the Claimant is entitled to compensation, what is the amount of those damages or that compensation?

13. If the Claimant is entitled to compensation, what interest rate/s should apply to that compensation?

List of Issues for the Defendant's Counter Claim[2]

14. Whether the Claimant delay the Project completion.

15. Whether the Claimant failed to finish the Project on time, as outlined in the contracts.

16. Whether the Claimant provided low quality work.

17. Whether the Claimant failed to make sufficient manpower available to maintain productivity.

18. If the Claimant is found to have breached the contracts, is the Defendant entitled to damages or compensation?

19. If the Defendant is entitled to compensation, what is the amount of those damages or compensation?

20. If the Defendant is entitled to compensation, what interest rate/s should apply to that compensation?

Disputed List of Issues

21. The replacement of “What is the correct amounts for the final account for the Project.” with Provided that there are neither defects nor unjustified delays in the execution of works, what is a fair amount to be paid as final account (if any) of the project?

Production of Documents (RDC Part 28)

22. Standard production of documents shall be made by each party by no later than **4pm on 8 September 2023.**

23. The parties shall file and serve a Request to Produce, if any, by no later than **4pm on 20 September 2023.**

24. Where there are no objections to a particular Request contained in a Request to Produce, documents responsive to that request shall be produced within 10 days from the date of the Request to Produce, and in any event by no later than **4pm on 30 September 2023.**

25. Objections to Requests to Produce, if any, may be filed and served by no later than **4pm on 27 September 2023.**

26. If a party is not satisfied with the objections to any Requests to Produce it may apply to the Court for a Document Production Order immediately using the Part 23 Form (the “Document Production Application”). The usual timelines under RDC 23, for progression of such an application, will apply.

27. Once the Document Production Application is fully progressed, the matter will be put before the Court for determination.

28. The parties shall comply with the terms of any Disclosure Order and file a Document Production Statement within 14 days from the date of the Order.

Witness Statements (RDC Part 29)

29. Signed statements of witnesses of fact, and hearsay notices where required by the RDC shall be exchanged 4 weeks following the close of the disclosure stage, and in any event by no later than **4pm on 25 October 2023.**

30. Any Witness Statement evidence in reply shall be filed and served within 2 weeks thereafter and in any event by no later than **4pm on 15 November 2023.**

31. Unless otherwise ordered, Witness Statements shall stand as evidence in chief of the witness at trial.

Expert Reports (RDC Part 31)

32. The Claimant shall file and serve any Expert Report(s) within 2 weeks of the close of witness evidence, and in any event by no later than 4pm on 29 November 2023 in respect of the following issues:

(a) Whether the Claimant was delayed in its performance of the works the subject of the contracts in suit;

(b) If the Claimant is entitled to any damages for prolongation costs and/or finance charges, what is the amount of those damages;

(c) Whether the Claimant's work was defective;

(d) If the Defendant is entitled to any damages for delay and incomplete works by the Claimant, what is the amount of those damages;

(e) If the Defendant is entitled to damages for loss of profits or business opportunity, what is the amount of damages suffered; and

(f) What is the correct final account for the Project.

33. The Defendant shall file and serve any Expert Report(s) in respect of those same issues within 2 weeks thereafter, and in any event by no later than **4pm on 13 December 2023.**

34. The DIFC Courts shall, at the Progress Monitoring Date, consider what directions to give concerning a meeting and discussion between experts.

Pre-Trial Review (RDC Part 26)

35. A pre-trial review shall be listed on **11 January 2024,** being within the normal range of 4 to 8 weeks before trial.

Trial Bundles (RDC Part 35)

36. Agreed trial bundles shall be filed and served no later than 2 weeks before trial and in any event by no later than **4pm on 29 January 2024.**

Reading List and Trial Timetable (RDC Part 35)

37. An agreed reading list for trial along with an estimate of time required for reading and an estimated timetable for trial shall be filed with the Court by the Claimant no later than two clear days before trial and in any event by no later than **4pm on 7 February 2024.**

Skeleton Argument and Chronology (RDC Part 35)

38. Skeleton Arguments and Written Opening Statements shall be filed and served two clear days before the start of trial for the Claimant and in any event by no later than **4pm on 6 February 2024** and one clear day before the start of trial for the Defendant and in any event by no later than **4pm on 8**

February 2024.

39. The parties shall prepare an agreed Chronology of significant events cross-referenced to significant documents, pleadings and witness statements which shall be filed with the Court by the Claimant by no later than 4pm on 9 February 2024. In the event that there are areas of disagreement, the Chronology shall include an agreed Chronology and a Chronology of events which are disputed, with the parties' respective positions outlined therein.

Trial (RDC Part 35)

40. The trial of this matter shall be listed on **12 February 2024** with an estimated duration of 5 days.

41. Costs of the Case Management Conference shall be costs in the case.

42. The parties shall have liberty to apply.

Issued by:

Delvin Sumo
Assistant Registrar
Date of issue: 1 September 2023
At: 3:30pm